

HOUSE No. 619

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to youth skin health.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/17/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>7/21/2025</i>

HOUSE No. 619

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 619) of Patrick Joseph Kearney relative to the availability of sunscreen for students. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to youth skin health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 71 of the Massachusetts General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding after section 99 the following section:-

3 Section 100. Any person, including but not limited to students, parents or school
4 personnel may possess and use a topical sunscreen product without a physician's note or
5 prescription while on school property or at a school-related event or activity to avoid
6 overexposure to the sun if the product is regulated by the Federal Food and Drug Administration
7 for over-the-counter use.

8 For the purposes of this Section only, sunscreen is not an over-the-counter medication.
9 Nothing in this section requires school personnel to assist pupils in applying sunscreen.

10 The school district may encourage school sites to educate pupils on sun safety
11 precautions.